

1.

CASE #	CASE NAME	HEARING NAME
CVSW2300121	BLACKBURN VS BERNAL	MOTION FOR SUMMARY JUDGMENT BY CARLOS RODRIGUEZ

Tentative Ruling: Motion for Summary Judgment is Denied. This lawsuit involves multiple consolidated complaints and cross-complaints. Rodriguez' motion fails to identify whom this motion is brought against. No specific party is identified in Rodriguez' notice. Instead, he states that he seeks summary judgment on the "ground that All Plaintiffs cannot establish one or more essential element of the negligent entrustment claim and/or Defendant has a complete defense." The separate statement does not separate out any causes of action or claims asserted by each plaintiff or cross-complainant. It also only identifies one plaintiff Paul Blackburn. However, neither Paul Blackburn nor his successors in interest have asserted a claim against Rodriguez. While the motion does identify all the complaints and cross-complaints and the parties asserting these pleadings in the memorandum of points and authorities, his analysis refers only to "plaintiff", and he only discusses negligent entrustment.

A moving party is required to provide notice when filing their motion for summary judgment. (CCP § 437c(a)(2).) "If summary judgment is sought, the notice of motion should name the party in whose favor and against whom the judgment is sought and the amount thereof, if applicable. (A notice simply directed 'to all opposing parties' may not constitute adequate notice in multiparty cases where different relief is sought against different parties.)" (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:85.) This motion should be denied because of insufficient notice. It is unclear who this motion is sought against.

Additionally, to the extent that it is brought against State or RV Concrete, it fails because it does not address any of the causes of action set forth in their complaints. The motion only discusses negligent entrustment. State and RV Concrete each assert a cross-complaint that alleges claims for equitable indemnity, contribution, comparative fault, and declaratory relief. Rodriguez fails to discuss these claims or how the negligent entrustment claim impacts these claims.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2300121	BLACKBURN VS BERNAL	MOTION FOR SUMMARY JUDGMENT BY THE STATE OF CALIFORNIA DEPARTMENT OF TRANSPORTATION AND RV CONCRETE, INC.

Tentative Ruling: Motion for Summary Judgment Denied. Motion for Judgment on the Pleadings against Smith and Hernandez on the First, Second, and Third Causes of Action is granted with 20 days leave to amend. Motion for Summary Judgment by RV Concrete, Inc. is Denied.

Procedural Issues: This motion is brought as to the Blackburns' causes of action for dangerous condition of public property and survival action (first and fourth causes of action); Rosalinda Smith and Theresa Hernandez' causes of action for wrongful death, negligence, emotional distress, and dangerous condition of public property; and

Bernal's causes of action for equitable indemnity, equitable contribution, and declaratory relief. While Alvaro Guterrez Camargo and Victoria Delgado have filed a joinder, the notice does not seek summary judgment against these individuals. As such, this motion will not be treated as a motion for summary judgment as to Alvaro Guterrez Camargo and Victoria Delgado.

While the motion is asserted against Rosalinda Smith and Theresa Hernandez' complaint, the only causes of action addressed by State is dangerous condition of public property and Bernal's causes of action for equitable indemnity, equitable contribution, and declaratory relief. Rosalinda Smith and Theresa's complaint asserts four causes of action and only the fourth cause of action is for dangerous condition of public property. State does correctly assert that claims against it must be based on a statutory basis. (*Gates v. Superior Court* (1995) 32 Cal.App.4th 481, 493-494.) The first three of Rosalinda Smith and Theresa Hernandez' causes of action do not identify any statutory basis. Due to this, the motion should be treated as a motion for judgment on the pleadings as to Rosalinda Smith and Theresa Hernandez' first, second, and third causes of action and it should be granted with leave to amend. (*Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1375-1376 (When a motion for summary judgment is used to test whether a cause of action is stated the court can treat the motion as a motion for judgment on the pleadings.)) Since Rosalinda Smith and Theresa Hernandez' complaint is being given leave to amend, State's argument regarding Bernal's cross-complaint fails. State argues that since judgment should be granted in their favor regarding the Blackburns, Rosalinda Smith, and Theresa Hernandez', Bernal's equitable claims against State fail. However, since judgement is not being entered in State's favor regarding Rosalind Smith and Theresa Hernandez' claims (or as discussed below, the Blackburns' claims), the motion fails as to Bernal.

Dangerous Condition: State asserts that the claims brought against them are all based on dangerous condition to public property. It contends that these claims fail because the public property at issue was not in a dangerous condition.

Under Government Code § 835,

a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measure to protect against the dangerous condition.

“‘Dangerous condition’ means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably

foreseeable that it will be used.” (Government Code § 830(a).) Under Government Code § 815.4,

A public entity is liable for injury proximately caused by a tortious act or omission of an independent contractor for the public entity to the same extent that the public entity would be subject to such liability if it were a private person. Nothing in this section subjects a public entity to liability for the act or omission of an independent contractor if the public entity would not have been liable for the injury had the act or omission been that of an employee of the public entity.

State argues that it was Bernal’s speeding and driving while intoxicated that caused the accident. It asserts that the accident occurred before the construction zone and it is not liable for dangerous condition to public property unless there was a defect to its property that created a dangerous condition. “There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third-party conduct that injures the plaintiff. ‘[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has ‘increased on intensified’ the danger to users from third party conduct.’” (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1348.)

State provides evidence that Bernal’s vehicle crashed into Blackburn’s vehicle. They provide testimony from an officer that stated that Bernal never indicated to the officer that the cause of the accident was because a vehicle stopped in front of him. (Officer Louis Godinez’s Deposition, 29:6-9.) Bernal informed the officer that the cause of action accident was another car hitting him from behind. (Id. at 10-13.) The officer investigated and did not find any indication that Bernal’s vehicle was struck from behind. (Id. at 58:5-8.) The officer’s investigation found that Bernal was driving under the influence of alcohol at the time of the accident and was going 89 miles per hour. (Id. at 60-61; 16-25 and 1-10.) The vehicles that Bernal struck were all stopped in traffic at the time of the accident. (Id. at 61-62.) Where the accident occurred, construction had not yet begun, and the lanes were not yet closed. (Id. at 73:1-7.) Signage regarding the lane closure was posted in at least four different locations before the accident site. (Id. at 75:14-25; 76:1-22.) State provides an expert that opines that it acted within the industry standards for traffic control in a construction zone. (Declaration of Louis Rubenstein, ¶ 34.) He also opined that State’s traffic control plan used for the site conformed to the Manual of Uniform Traffic Control Devices, which is the standard used by public agencies. (Id. at ¶¶ 19 and 35.) Based on this evidence, it appears that State has met its burden to establish that the road conditions did not constitute a dangerous condition and it did not cause the accident.

Opposing Plaintiffs provide evidence that State adopted a Project Plan and Special Provisions for the project. (Edwin Eldes’ Deposition, 23:6-22; 25:5-47.) The Project Plan and Special Provisions required a speed reduction zone and a queue warning system. (Declaration of Christian Engelmann, ¶ 21.) On the night of the accident, no speed reduction zone or queue warning system was in place. (Id. at ¶ 32.) These systems post a reduced speed limit, notify the public of the speed reduction, and alert drivers that traffic is slowing down or stopping. (Id. at ¶¶ 22-23.) The purpose of these systems is to enhance safety, improve traffic flow, improve driver awareness, and reduce rear-end collisions. (Id. at ¶ 23.) The queue warning system requires that two portable

changeable message signs be placed before the lanes start to merge (the first 7.5 miles before and the second 3.5 miles before). (Id. at ¶ 24.) Plaintiff's expert opines a deviation from the Special Provisions and Project Plan was not reasonable, created a dangerous condition, and the failure to implement these plans by State and RV Concrete fell below their required standard of care. (Id. at ¶¶ 35, 39, and 44.) Plaintiff's expert also testified that the traffic control provisions in place were not reasonable. (Id. at ¶ 40.) They provide evidence that RV Concrete was required to implement the Project Plan and Special Provisions for the project and State was required to monitor RV Concrete to determine that these requirements were being met. (Edwin Edles' Deposition, 33:7-16; 34:17-20; Denise Sostrom's Deposition, 122:9-23; Brian Pinkerton's Deposition, 49-58; and Vincent Nguyen's Deposition, 31:15-20.) The parties agree that RV Concrete is State's independent contractor. They provide evidence that a speed reduction zone is always required when there is work on a freeway, like this project, and requires the lowering of the speed limit and a warning to the public of the speed reduction. (Deposition of Denise Sostrom, 96:5-25; 97:1.) They provide evidence that State informed RV Concrete that speed limit reduction signs were required to be in place every night there was work on the project. (Deposition of Edwin Edles, 156:2-25; 187:1-23.) State also informed RV Concrete that a speed radar sign was required to be in place whenever a lane was closed. (Id. at 196:15-25; and 1-23.) Bernal also testified that while he saw the construction signs, he wasn't expecting traffic to stop before the accident occurred. (Bernal's Deposition, 115:11-18.) Based on this evidence, there appears to be a triable issue of material facts as to whether the road condition constituted a dangerous condition due to the closure of two lanes without the implementation of a speed reduction zone and whether State and RV Concrete's conduct in part caused the accident.

State argues this evidence is not sufficient because Opposing Plaintiffs have failed to show that conditions had been met that required the speed reduction zone or queen warning system to be put in place. However (as discussed above), Opposing Plaintiffs have provided evidence that State's own employees stated that the speed reduction measures, which includes a reduced speed limit and radar sign, were required whenever there was a lane reduction. As such, at least for the speed reduction zone, this argument lacks merit. State also argues that there is no evidence that it caused the accident. However, Moving Plaintiffs have provided evidence that the reason a speed reduction zone is needed is for safety purposes and State provides evidence that speed was a factor in the cause of accident. This appears sufficient to establish a triable issue of material fact as to causation too.

Design Immunity: State also argues that design immunity under Government Code § 830.6 is also applicable. Government Code § 830.6 provides that a public entity is not liable:

For an injury caused by the plan or design of a construction of, or an improvement to, public property where such plan or design has been approved in advance of the construction or improvement by the legislative body of the public entity or by some other body or employee exercising discretionary authority to give such approval or where such plan or design is prepared in conformity with standards previously so approved, if the trial or appellate court determines that there is any substantial evidence upon the basis of which (a) a reasonable public employee could have adopted the plan or design

or the standard therefor or (b) a reasonable legislative body or other body or employee could have approved the plan or design or the standards therefore.

State contends that it has a Caltrans Standard Plan T-10, which has been approved by a competent engineer regarding traffic control device implementation when there is road work. It asserts that due to this plan, design immunity under Government Code § 830.6 applies. However, the Court in *Winig v. State of California* (1995) 37 Cal.App.4th 11772, 1776 found that the application of Government Code § 830.6 “to other than the plan or design of the finished project is unwarranted by its text, precedent, or the history of its enactment.” It states “[t]he class of risks that attend construction work is dissimilar to that attending the design of improved public property. The risks inherent in the static design alternatives of a finished fixed installation are different in kind and generally more limited and foreseeable than those which arise in the fluid process of construction.” (*Id.* at 1777.) It provides “[t]here is no California case which applies section 830.6 to the means of construction of an improvement of public property.” (*Id.*) It states that Government Code § 830.6 “applies to the plan or design ‘of’ the improvement and not the means of its construction.” (*Id.* at 1774.)

State contends that *Winig* is not applicable because in that case, the government entity attempted to use design immunity by arguing approved plans for the roadway applied the immunity to conduct that occurred during construction. While *Winig* is not addressing Caltrans Standard Plan T-10, the language used by the Court in *Winig* is helpful. The Court points out that design immunity under Government Code § 830.6 applies to a finished projects. Caltrans Standard Plan T-10 is a generic plan followed regarding construction. Such a plan does not appear to fit within the language of Government Code § 830.6. State fails to point to any authority where design immunity has been applied to a generic construction plan. As such, Government Code § 830.6 does not appear applicable and the motion is denied as to this argument.

Sign Immunity: State argues that it is not liable based on immunity under Government Code §§ 830.4 and 830.8. Government Code § 830.4 is not applicable. It provides that a dangerous condition cannot be based merely on a failure to provide a traffic signal, stop sign, yield right of way sign, or speed restriction sign. This matter is not based solely on the failure to provide a sign. It pertains to road construction, which included the reduction of lanes and a failure to implement safety procedures. As such, it does not appear applicable. Government Code § 830.8 states that “[n]either a public entity nor a public employee is liable under this chapter for injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code.” However, it goes on to provide that “[n]othing in this section exonerates a public employee from liability for injury proximately caused by such failure if a signal, sign, marking or device (other than one described in Section 830.4) was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care.” (Government Code § 830.8.) “Section 830.8 of the Government Code does not exonerate a public entity for failure to post traffic signs where they are necessary to warn motorists of the existence of a dangerous condition.” (*Bakity v. County of Riverside* (1970) 12 Cal.App.3d 24, 31.) Since there is a triable issue of material fact as to whether there is a dangerous condition, there appears to be a triable issue of material fact as to whether Government Code § 830.8 is applicable.

Due to the facts discussed above, the motion is denied because there is a triable issue of material facts as to dangerous condition and causation.

RV CONCRETE - RV Concrete's motion is based on the same arguments and evidence as State. It asserts that it complied with all of State's requirements. However, as discussed above, there is a triable issue of fact as to whether State's requirements have been met. It also argues that causation cannot be established. However, as discussed above, there is a triable issue of material fact regarding causation. As such, this motion is denied because there is a triable issue of material facts.

Objections: Opposing Plaintiffs have made objections to State and RV Concrete's evidence. Most of Opposing Plaintiffs' objections are to large portions of deposition testimony, making it impossible to tell which objection is being made to which sentence at issue. Objections 7 and 8 have merit and will be sustained. Remaining objections are overruled.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2301545	BLACK VS GENERAL MOTORS, LLC.	MOTION UNDER EVIDENCE CODE SECTION 402(A)

Tentative Ruling: To be heard as a motion in limine.